

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

Preparation of the 11th Consultation

Combating discrimination in education

Eleventh consultation of Member States on the application of the Convention and the Recommendation against Discrimination in Education (1960) (2024-2025)

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

1. Introduction

The Convention against Discrimination in Education (“the Convention”) and the Recommendation against Discrimination in Education (“the Recommendation”), adopted by UNESCO’s General Conference in 1960, are aligned with UNESCO’s constitutional mandate to “advance the ideal of equality of educational opportunities without regard to race, sex or any distinctions, economic or social”. The Convention is the first legally binding international instrument focused on the **right to education** and the only one exclusively dedicated to it.

The right to education is one of the key principles underpinning the Education 2030 agenda and Sustainable Development Goal 4 (SDG4) adopted by the international community in 2015. SDG 4 seeks to ensure the full enjoyment of the right to education as fundamental to achieving sustainable development. Its scope captures the multidimensional nature of the right to education.

Representing a powerful tool to advance SDG 4 by ensuring effective articulation between normative and operational work, the Convention has been recognized as a cornerstone of Education 2030 agenda.

The present Guidelines are intended to assist Member States in the preparation of country reports on the implementation of the Convention and the Recommendation in the context of the 11th consultation.

2. Scope of the Consultation

Considering the Education 2030 agenda, the monitoring of the Convention and the Recommendation is of crucial importance to ensure an education that is truly inclusive for all and to counter persistent inequalities in access, participation and learning outcomes at all levels, particularly for the most vulnerable groups. This is particularly true under the current context in which countries are making efforts to recover from the learning disruption caused by the COVID-19 pandemic. Concrete measures taken by countries in accordance with their legal obligations under these instruments contribute to implementing the Education 2030 agenda.

As the scope and content of the legal obligations under the right to education are aligned with the 10 targets of SDG 4, efforts are being made to ensure that the components of the targets are included in the guidelines and that these guidelines serve as a valuable contribution to monitoring progress towards SDG 4 targets.

Beyond SDG 4, the Convention is also closely aligned with the normative content on the right to education of other international human rights instruments such as the International Covenant on Economic, Social and Cultural Rights (1966), Convention on the Elimination of All Forms of

Discrimination against Women (1979), the Convention on the Rights of the Child (1989) and the Convention on the Rights of Persons with Disabilities (2006).

In addition, this Consultation is an opportunity to inform the ongoing **UNESCO Initiative on the Evolving Right to Education within a lifelong learning perspective**¹ (launched in December 2021). The Initiative investigates how the right to education could be reinforced placing it within a lifelong learning perspective and in light of the new demands being placed on education. This Initiative builds on the **Report from the International Commission on the Futures of Education**², which suggests to broaden our understanding of the right to education to clearly apply it to all ages and across all times and spaces. The initiative is also in-line with the **Vision Statement of the United Nations Secretary General on Transforming Education**³, and the **Report on the 2022 Transforming Education Summit**⁴ which call for the transformation of education systems to 'include everyone, regardless of circumstance, context or background'. The Initiative on the Evolving Right to Education aims to open a collaborative and participatory discussion about the international framework to ensure the effective enforcement of the right to education and learning throughout life for all. Finally, the Initiative builds on recent inter-governmental dialogues, including the Marrakech Framework for Action for Adult Learning and Education⁵ and the Tashkent Declaration on Early Childhood Care and Education.⁶

It is also important to note that previous consultations on the Convention and Recommendation revealed that countries now understand the right to education in an extended manner. The 11th consultation builds on the findings of the previous national reports to include various areas that have direct repercussions on the right to education such as, for instance, digital learning, climate considerations, lifelong learning entitlement, and the role of non-state actors in education.

3. Reporting obligations

There are differences in the legal nature of the obligations under the Convention, as distinguished from those under the Recommendation. The Convention has binding force and the States Parties are under the obligation to incorporate its provisions into their domestic frameworks. The Recommendation, non-binding in nature, has political and moral force. Its adoption sought to take into account the difficulties that certain States might experience in ratifying the Convention, in particular with respect to their federal structure.

Bearing in mind the differences in legal scope inherent to the nature of these two categories of instruments, the content of the Recommendation is identical to that of the Convention. Member States are expected to give effect to it in national legislation and education policies.

The reporting obligation under the provisions of Article VII of the Convention and of the Recommendation is the same. Article VIII of UNESCO's Constitution states that "*Each Member State shall submit to the Organization, at such times and in such manner as shall be determined by the General Conference, reports on the laws, regulations and statistics relating to its educational, scientific and cultural institutions and activities, and on the action taken upon the recommendations and conventions referred to in Article IV, paragraph 4*". Therefore, even if a country is not a State Party to the Convention, it needs to submit a report on the implementation of the Recommendation, which means that **all UNESCO Member States are expected to submit a national report** on the implementation of these instruments in the context of monitoring consultations.

¹ <https://www.unesco.org/en/right-education/evolving>

² <https://unesdoc.unesco.org/ark:/48223/pf0000379707>

³ https://www.un.org/sites/un2.un.org/files/2022/09/sg_vision_statement_on_transforming_education.pdf

⁴ https://www.un.org/sites/un2.un.org/files/report_on_the_2022_transforming_education_summit.pdf

⁵ [Marrakech Framework for Action | Institute for Lifelong Learning \(unesco.org\)](https://www.unesco.org/en/marrakech-framework-for-action)

⁶ [Tashkent-declaration-ecce-2022.pdf \(unesco.org\)](https://www.unesco.org/en/tashkent-declaration-ecce-2022)

4. Participation in consultations

The reporting period for the 11th consultation on the implementation of the Convention and the Recommendation covers four years (2021-2024).

The Futures of Education Report calls for a new social contract for education, which requires to understand education as a common good and a shared societal endeavour. To ensure this, extensive consultations involving a broad range of stakeholders is needed. The reporting process therefore needs to be **participatory**. This includes ensuring cooperation between ministries of education and other ministries dealing with aspects of the right to education as well as consulting social partners and **civil society organizations** and other relevant bodies.

The preparation of national reports provides a **good opportunity** for Member States to assess the implementation of the right to education in their country, identify specific challenges, build constructive dialogue with other actors involved in this field and share good practices.

In the preparation of reports, Member States are encouraged to provide **substantive and relevant information in a concise manner**. In addition to a description of the constitutional, legislative, administrative, and policy framework established for the implementation of the provisions guaranteed by the instruments, the information supplied by Member States should demonstrate how legal norms and practices comply with the Convention and the Recommendation.

Relevant information supplied for other reporting instances may be reproduced or referred to with precise indication as to its retrieval. Similarly, hyperlinks to any useful documents or relevant legal and policy texts are most welcome and texts can also be added in the annex.

Country reports submitted for previous consultations can be found on the **Observatory on the right to education**⁷ in the monitoring section of the country profile. The information provided in the reports are valuable both for the Observatory on the right to education as well as for **HerAtlas**⁸, the online monitoring tool for girls' and women's right to education. Information and data regarding countries' education systems are also available through the UNESCO Institute for Statistics database⁹. Beyond monitoring purposes, the consultation findings and reports inform broader work - serving for knowledge generation, advocacy, and technical cooperation.

5. Modalities and structure

The Guidelines are structured around three chapters:

- The **first chapter** covers general information on adherence to the Convention.
- The **second chapter** aims to gather information on the implementation of the Convention and Recommendation in the context of Sustainable Development Goal 4. As the most extensive part of the Guidelines, this chapter covers: inclusion and non-discrimination in education (section 1), all levels and forms of education (section 2), quality education provision and learning environment (section 3) and finally, strengthening governance systems (section 4).
- The **third chapter** seeks to obtain information on the methods used to draw the attention of the various authorities in the country to the instruments.

With a view to simplify the Guidelines while providing necessary substantive information to assist Member States in the preparation of responses, through a participatory process, **two types of guidance** are provided:

⁷ <http://www.unesco.org/education/edurights/index.php?action=home&lng=en>

⁸ <https://en.unesco.org/education/girls-women-rights>

⁹ [UIS Statistics \(unesco.org\)](http://uis.unesco.org)

- (1) Open-ended and closed-ended questions to be directly filled in by Member States. Please note that multiple answers may be provided where relevant.
- (2) Additional information aimed at guiding Members States to structure and detail their responses to the open-ended questions (including remarks on how to respond efficiently to the questions raised). These elements are presented in italics.

GENERAL INFORMATION:

Country name: Germany

Organization or entity responsible for the preparation of the report: Federal Foreign Office

Name of contact person: Mechthild Ermisch

Email and telephone number of contact person: 03-9-1@auswaertiges-amt.de

I. Ratification and applicability of the Convention against Discrimination in Education¹⁰

- Is your country a State Party to the Convention?

☒ Yes

☐ No: Does your country plan to ratify this instrument?

☐ Yes: Please indicate the stage of ratification process reached by your country and whether assistance is needed:

☐ There is interest but no concrete action has been taken

☐ The ratification process has been initiated

☐ The ratification process is close to completion

- Please briefly explain the steps that have been taken and timeline when relevant, any difficulties encountered (legal, institutional, political or practical) in completing the ratification process. And how UNESCO can assist:

☐ No, not considering ratification. Please explain why:

- Is the Convention directly applicable in your country's domestic law?

☐ Yes ☐ No

- Have courts, tribunals and/or administrative authorities adjudicated on issues or violations regarding the right to education?¹¹

☐ No

¹⁰

<https://www.unesco.org/en/legal-affairs/convention-against-discrimination-education>

¹¹

Judicial mechanisms play an important role in enforcing the right to education by ensuring legal accountability and therefore contributing to the practical realization of the right to education.

☐ Yes: Have the provisions of the Convention been invoked?

☐ Yes ☐ No

- Please cite the case law and jurisprudence.

Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the right to education.

II. Information on the implementation of the Convention or Recommendation in the context of Sustainable Development Goal 4 (SDG4)

1. Towards an inclusive non-discriminatory education system

For reference: This section relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity as laid out in Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation.

It further corresponds to the overall aspiration of SDG4 which aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all” by 2030. While it covers all the SDG4 targets, it also specifically covers SDG target 4.5.¹²

- Please indicate whether the rights and principles laid out in the Convention/Recommendation informed the elaboration of the education legal and/or policy framework:

☒ Yes ☐ No

- If yes, please provide reference:

School laws and the ordinances of the federal states; Resolutions and recommendations of the Standing Conference of Ministers of Education and Cultural Affairs

1.1 Non-discrimination and equality in education

- Please indicate measures adopted to both prevent and eliminate discrimination in education within the meaning of the Convention/Recommendation¹³, and ensure equal access to all levels and types of education (please tick all that apply):

For reference: This notably is covered under SDG target 4.1 and partly target 4.b¹⁴

¹² Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

¹³ See: Article/Paragraph 1(1).

¹⁴ Which calls on states to “substantially expand globally the number of scholarships available [...] for enrolment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programmes”.

☒ Legal texts¹⁵ prohibit discrimination and guarantee equal access to education:

- ☒ In pre-primary education (including early learning and care)
- ☒ In primary education
- ☒ In secondary education
- ☒ In technical and vocational education and training
- ☒ In higher education
- ☒ In adult education and alternative learning

- Please indicate the relevant legal provisions:

- so-called educational plans of the federal states for their daycare centers
 - School laws of the federal states
 - child's universal right to a daycare place from the age of 12 months until school entry
- Regarding higher education please refer to section 2.3.

- Please list the prohibited grounds of discrimination in education as laid out in legal texts:

The task of education is determined by the right of young people to develop their talents and expand their abilities, regardless of their religion, ideology or ethnic origin, disability, gender or sexual identity.

They result from the Basic Law of the Federal Republic of Germany.

☒ Policies, programmes and initiatives aim to prohibit and prevent discrimination and ensure equal access to education

- ☒ In pre-primary education (including early learning and care)
- ☒ In primary education
- ☒ In secondary education
- ☒ In technical and vocational education and training
- ☒ In higher education
- ☒ In adult education and alternative learning

- Please provide details:

- Girls' and Boys' days: This initiative aims to break down gender-specific role stereotypes in career choices.

¹⁵ Constitution, laws, decrees, regulations, circulars, etc.

- National Decade for Literacy and Basic Education: With the "National Decade for Literacy and Basic Education", the federal government, federal states and partners are committed to improving basic education in Germany in order to reduce functional illiteracy

- Right to education for all

- Compulsory education for all

- Free access to education

Regarding higher education please refer to section 2.3.

☒ Combatting discrimination in terms of curriculum:

☒ In pre-primary education (including early learning and care)

☒ In primary education

☒ In secondary education

☒ In technical and vocational education and training

☒ In higher education

☒ In adult education and alternative learning

- Please provide details:

Equal rights for all groups in society are part of the school curricula

In Germany, study programmes need to be accredited by the German Accreditation Council on either programme level or on the level of the HEI's quality assurance system. Part of the criteria which are evaluated in this process is the implementation of concepts to assure equality and to foster equal opportunities for all students.

☐ Other measures adopted to both prevent and eliminate discrimination in education and ensure equal access to all levels and types of education:

1.2 Equality of opportunities and inclusion in education

- Please indicate the actions taken/planned to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners in learning processes (*several items may be ticked*):

General measures:

- | | |
|--|--|
| ☒ Legislation provides for inclusive education for all | ☒ Multiple and flexible learning pathways ¹⁷ are provided for |
| ☒ Policy measures aim to enhance inclusion in education for all | ☒ Curricula and teaching methods are inclusive in design ¹⁸ |
| ☒ Teachers are trained on inclusive education ¹⁶ and to value diversity | ☒ Multilingual and intercultural education is supported |
| ☒ Initiatives to address discrimination and promote cultural diversity and mutual acceptance | |
| ☐ Other: | |

Regarding higher education please refer to section 2.3.

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

- In general, what challenges were encountered in the implementation of non-discrimination and equal opportunities principles in education? If needed, brief quantitative information may be added.

Other relevant general measures, including gender equality

- | | |
|---|---|
| ☒ Legislation provides for gender equality in education | ☒ All barriers for pregnant girls and young mothers in education are eliminated to ensure the continuity of their education |
| ☒ Policy measures aim to enhance gender equality | ☒ Re-entry programmes for young mothers are provided for |
| ☒ Gender-responsive education sector planning is undertaken | ☒ Ensuring safe and adequate gender-sensitive sanitation facilities ²⁰ |
| ☐ Providing positive or affirmative action measures | ☒ Curricula are rid of all stereotypes ²¹ and bias |

¹⁶ Teachers are prepared to teach all student (beyond just students with disabilities), equipping them with knowledge, values and attitudes that permit every student to succeed. See: [UNESCO policy paper](#): Inclusive teaching: preparing all teachers to teach all students, 2020, p.14.

¹⁷ Multiple and flexible learning pathways are 'entry points and re-entry points at all ages and all educational levels, strengthened links between formal and non-formal structures, and recognition, validation and accreditation of the knowledge, skills and competencies acquired through nonformal and informal education' ([Education 2030 Framework for Action](#), para. 33). This may include student transfers between courses and institutions and diverse learning modalities (online, in-person, full-time, part-time, etc.) to respond to individual needs and interests.

¹⁸ In designing the curricula and teaching methods, care is given to ensure that all students are provided with an inclusive and supportive learning experience that offers them the opportunity to succeed whatever their background. Gender-sensitive sanitation includes clean, safe and separate toilets, with access to water and garbage disposal' ([UNGEI blog post](#), Gender-sensitive sanitation, 2018)

²¹ Stereotype is a set idea that people have about what someone or something is like, especially an idea that is wrong' (Cambridge Dictionary).

- ☒ Providing financial incentives and fellowships
- ☒ Teachers are trained (initial and in-service) on gender equality
- ☒ Teachers are trained to combat stigmatisation¹⁹

- ☒ Ensuring gender parity in science, technology, engineering and mathematics (STEM)
- ☒ Ensuring gender parity in technical and vocational training education and training (TVET)

☐ Other:

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

- The HEIs are required to implement measures to promote equality. The basis for this includes the Landeshochschulgesetze (state higher education acts) and the target and performance agreements between the HEIs and the responsible ministries of the Länder. Since the HEIs, as public institutions, are bound by the rules of the civil service, the participation of Gleichstellungsbeauftragte (equal opportunities officers) and, if applicable, Behindertenbeauftragte (disabled persons' representatives) is also mandatory in application and recruitment procedures.
 - The federal and Länder governments also fund the Female Professors Program (Professorinnenprogramm), which provides financial incentives for recruiting women as professors.

- What challenges were encountered in achieving gender equality in and through education? If needed, brief quantitative information may be added.

- Does the legal minimum age for marriage conform to international standards (18 years) ²²:

Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

☒ Yes ☐ No

- Please provide reference to the relevant laws and provisions and indicate the exceptions to the legal age of marriage as well as the absolute minimum age:

According to Section 1303 sentence 1 of the German Civil Code (BGB), a marriage may not permissibly be entered into before the parties attain full age (which means: both fiancés must

¹⁹ ' Stigmatisation is the act of treating someone or something unfairly by publicly disapproving of them' (Cambridge Dictionary).

²² Please note that according to the Joint general recommendation No. 31 of the Committee on the Elimination of Discrimination against Women/general comment No. 18 of the Committee on the Rights of the Child on harmful practice, para. 20: "a marriage of a mature, capable child below 18 years of age may be allowed in exceptional circumstances, provided that the child is at least 16 years of age and that such decisions are made by a judge based on legitimate exceptional grounds defined by law and on the evidence of maturity, without deference to culture and tradition."

be at least 18 years old). According to Section 1303 sentence 2, a marriage cannot be effectively entered into with a person who has not yet attained the age of 16. In concrete terms this means:

If a person aged 16 or over has entered into a marriage contrary to Section 1303 sentence 1 BGB, this marriage can be annulled (Section 1314 paragraph 1 number 1 BGB). In these cases, annulment of the marriage is the legal rule. An annulment of the marriage is only excluded if a) the minor spouse, after having attained full age, has indicated that they intend to continue the marriage (confirmation), or if, b) due to exceptional circumstances, the annulment of the marriage would constitute such grave hardship for the minor spouse that, as an exception, the continuance of the marriage seems to be mandated.

If a person was younger than 16 at the time of marriage, the marriage is invalid by law (Section 1303 sentence 2 BGB).

According to section 13 paragraph 3 number 1 and 2 of the Introductory Act to the Civil Code (EGBGB) this also applies if the nubility of a person to be married is governed according to section 13 paragraph 1 EGBGB, by foreign law.

National minorities:

For reference: Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities.

- | | |
|---|--|
| ☒ Legislation provides for the right to education of national minorities | ☒ Teachers are trained on intercultural education |
| ☒ Policy measures aim to enhance the right to education of national minorities | ☒ Teachers are trained to combat stigmatisation ²⁴ |
| ☒ Policy elaboration includes consultations with local communities | ☐ Multilingual and intercultural education are supported |
| ☒ The right to carry out their own educational activities is legally guaranteed for national minorities | ☐ Native language instruction is ensured for national minorities |
| ☐ Educational standards are established for educational institutions run by national minorities | ☐ Adapting curricula and teaching and learning methods to their needs for national minorities |
| ☐ Positive or affirmative action measures are provided for national minorities | ☒ Curricula are rid of all stereotypes ²⁵ and bias |
| ☐ Financial incentives and fellowships are provided for national minorities | |
| ☐ Other ²³ : | |

²³ Please see: [UNESCO report](#) 'The right to education of minorities: Overview of States' measures reported in the 10th Consultation on the 1960 Convention and Recommendation against Discrimination in Education, 2023.

²⁴ Supra note 15.

²⁵ Supra note 16.

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Compulsory schooling applies to all children, irrespective of their origin or affiliation to a minority. There is no segregation according to minority status. For details on the language of instruction please refer to the 10th German Report.

Promoting an understanding of the history of ethnic minorities is important for a non-discriminatory approach that can contribute to educational success. Against this background the Standing Conference of the Ministers of Education and Cultural Affairs, the Central Council of German Sinti and Roma and the Alliance for Solidarity with the Sinti and Roma of Europe, adopted a "Joint Declaration on Teaching the Past and Present in Schools" in December 2022. The aim is to intensify the study of the past and present of the Sinti and Roma in the classroom and in extracurricular activities.

The Standing Conference of Ministers of Education and Cultural Affairs is currently developing a recommendation for raising awareness on the four autochthonous minorities and ethnic groups in Germany and the Low German (Niederdeutsch) speaker group in school lessons.

- What challenges were encountered in realizing the right to education of minorities? If needed, brief quantitative information may be added.

Indigenous people:

- | | |
|--|--|
| ☐ Legislation provides for the right to education of indigenous people | ☐ Financial incentives and fellowships are provided for indigenous people |
| ☐ Policy measures aim to enhance the right to education of indigenous people | ☐ Teachers are trained on intercultural education |
| ☐ Policy elaboration includes consultations with local communities | ☐ Teachers are trained to combat stigmatisation ²⁶ |
| ☐ The right to carry out their own educational activities is legally guaranteed for indigenous people | ☐ Multilingual and intercultural education are supported |
| ☐ Educational standards are established for educational institutions run by indigenous people | ☐ Native language instruction is ensured |
| ☐ Positive or affirmative action measures are provided for indigenous people | ☐ Adapting curricula and teaching and learning methods to their needs for indigenous people |
| ☐ Other: | ☐ Curricula are rid of all stereotypes ²⁷ and bias |

²⁶ Supra note 15.

²⁷ Supra note 16.

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

- What challenges were encountered in realizing the right to education of indigenous people? If needed, brief quantitative information may be added.

People on the move (migrants, refugees, asylum-seekers, stateless persons and internally displaced persons) and trapped populations²⁸:

- | | |
|--|--|
| ☒ Legislation provides for their right to education | ☐ Financial incentives and fellowships are provided for |
| ☒ Policy measures aim to enhance their right to education | ☐ Auxiliary assistance is provided |
| ☒ Inclusion in mainstream schools is ensured | ☒ Multiple and flexible learning pathways ³¹ are provided |
| ☐ Positive or affirmative action measures are provided for | ☒ Curricula are rid of all stereotypes ³² and bias |
| ☒ All administrative barriers to access education are removed | ☐ Accelerated learning programmes are provided |
| ☐ Alternative administrative procedures (placement tests, portfolio of evidence, etc.) to overcome administrative barriers ²⁹ are provided for | ☐ Non-formal and/or alternative education programmes are provided |
| ☐ Teachers are specifically trained to ensure their inclusion | ☒ Language classes to newcomers are provided for |
| ☒ Teachers are trained to combat stigmatisation ³⁰ | ☒ Multilingualism and intercultural education are encouraged |
| ☐ Other: | |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Compulsory schooling and the child's universal right to a daycare place from the age of 12 months applies to all children, irrespective of their origin or residence status. The German Residence Act exempts educational institutions from the obligation to report pupils' residence status to the authorities.

²⁸ 'Trapped populations are those who are unable to migrate to safe locations and remain trapped in locations vulnerable to the impacts of climate hazards' ([UNESCO report](#): The impact of climate displacement on the right to education, 2020, p. 2).

²⁹ While lack of documentation (such as identity papers, birth certificates, residency permits, etc.) should not be an obstacle to access education, these can constitute a barrier to education See: [UNESCO publication](#): Handbook on the right to education, 2018, p. 96.

³⁰ Supra note 15.

³¹ Supra note 13

³² Supra note 16.

Generally, persons with a refugee or asylum status may take up a course of study. Not only after the beginning of Russia's war against Ukraine numerous integration initiatives have been set up at higher education institutions including for example scholarships, specific study preparation programmes and/or German language tuition. As early as 2015, the Standing Conference of the Ministers of Education and Cultural Affairs of the Federal Republic of Germany agreed a common procedure for applicants who, due to their flight, are unable to provide original or certified copy of their higher education entrance qualification obtained in their home country. These applicants will be allowed to provide evidence in a specific procedure. This includes 1) determining their personal premises on the basis of refugee and legal residence status 2) checking the credibility of their school and academic career and 3) conducting an examination and/or assessment procedure. The Standing Conference furthermore adopted a decision in 2016 which outlines possibilities to reduce enrolment fees for refugees. Important information on the issue of refugees in higher education was collected in a brochure published in 2016 by several stakeholders, including the Standing Conference. It offers guidance for university staff and people working at associations for student affairs.

Following Russia's war against Ukraine the Standing Conference of Ministers of Education and Cultural Affairs established a Task Force in March 2022 in order to better coordinate measures for the integration of refugees. In addition, the Standing Conference of Ministers of Education and Cultural Affairs adopted a resolution which regulates access to higher education for those who obtained Ukrainian educational certificates but could not complete their school or academic year regularly due to the war.

Moreover, the German Academic Exchange Service in cooperation with the Federal Ministry of Education and Research, the Standing Conference of Ministers of Education and Cultural Affairs, the science ministries of the German Länder and the Alliance of Science Organisations in Germany has set up the [National Academic Contact Point Ukraine](#). The website aims at offering a first orientation in Germany and especially in the German higher education and research system to Ukrainian students and researchers.

- Have specific measures been adopted for climate displaced persons?

☐ Yes ☐ No

- Please elaborate:

- What challenges were encountered in realizing the right to education of migrants, refugees, asylum seekers, stateless persons and IDPs? If needed, brief quantitative information may be added.

People with disabilities:

- | | |
|---|--|
| ☒ Legislation provides for their right to education | ☒ Mainstream teachers are specifically trained on disabilities |
| ☒ Policy measures aim to enhance their right to education | ☒ Teachers are trained to combat stigmatisation ³³ |
| ☒ Inclusion in mainstream schools is ensured | ☒ Auxiliary assistance is provided |
| ☒ Special schools are used as resource centers to inclusive schools | ☒ Curricula and teaching and learning methods are adapted |
| ☐ Positive or affirmative action measures are provided | ☒ Curricula are rid of all stereotypes ³⁴ and bias |
| ☐ Financial incentives and fellowships are provided | ☒ Education infrastructure and learning materials are adapted |
| ☐ Other | |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

In order to enable children and young people with disabilities to participate fully and effectively in education, the Standing Conference of the Ministers of Education and Cultural Affairs is currently revising their recommendations on the schooling, consulting and support of children and young people with a special educational need. In March 2021, the recommendation with the focus on "Intellectual development" was adopted.

- What challenges were encountered in realizing the right to education of people with disabilities? If needed, brief quantitative information may be added.

Students from poor households:

- | | |
|---|---|
| ☐ Financial incentives and fellowships for school enrolment are provided | ☒ Teachers are trained to combat stigmatisation ³⁵ |
| ☒ Transport, meals and education material are subsidised or provided free of charge beyond compulsory education | ☒ Curricula are rid of all stereotypes ³⁶ and bias |
| ☐ Positive or affirmative action measures are provided | |

³³ Supra note 15.

³⁴ Supra note 16.

³⁵ Supra note 15.

³⁶ Supra note 16.

☐ Other:

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

The Federal Government and the Länder continue to aim making educational success less dependent from the socio-economic background of learners and launched various measures to increase educational equity. The Startchancen-Programm which has been agreed upon in 2024 is set to start in the 2024/25 school year and will provide 20 billion euros to 4,000 schools with a high share of socially disadvantaged pupils across Germany over the course of ten years.

- What challenges were encountered in realizing the right to education of students from poor households? If needed, brief quantitative information may be added.

2. Progress made with respect to implementing the right to education across all levels and forms of education

2.1 Early childhood care and education

For reference: Early childhood care and education (ECCE) is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of ECCE over the years. The Committee on the Rights of the Child initially recognized “the right to education during early childhood as beginning at birth” (General Comment No. 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation³⁷ and more recently, the Tashkent Declaration and Commitments to Action for Transforming Early Childhood Care and Education³⁸. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to “the provision of at least one year of free and compulsory pre-primary education”.

- Please indicate the measures taken to ensure access to quality ECCE (*several items may be ticked*):

- | | |
|--|---|
| ☐ Prior to pre-primary education, ECCE services are free | ☒ ECCE services respect a child’s need for early cognitive and social development, foundational learning, responsive care, nutrition, health, safety, protection, and play. |
| ☒ Prior to pre-primary education, ECCE services are affordable | |
| ☒ ECCE services are accessible on a non-discriminatory basis | |

- Please elaborate further on the measures taken:

- A child’s universal right to a daycare place from the age of 12 months that allows for seamless transition from parental leave to daycare was established in 2013.

³⁷ Which states that “ECCE is part of the right to education and the main foundation for holistic human development”.
³⁸ Which commits states to “Enhance policy and legal frameworks to ensure that the right to education includes ECCE”

- In order to increase the availability of ECEC, since 2008, the Federal Government has contributed a total of 5.4 billion euro toward the quantitative expansion of child daycare through various investment programs. As part of a fifth investment program, the Federal Government allows for the creation of an additional 90,000 daycare places for children up until school age. Furthermore, since 2019, the federal government has been providing additional funds to support the federal states in further developing the quality of early childhood education, care, and participation in childcare. Through the Childcare Quality Act, from 2023 to 2024 the Federal Government is providing the Federal Länder with around 4 billion euros in funding to further develop the quality and improve access to children's daycare. The funds are primarily invested in areas crucial for quality improvement, including improving the staff-to-child ratio, strengthening childcare center leadership, and promoting language education.

- Is compulsory and free of charge pre-primary education available?

- ☐ Pre-primary education is compulsory. Please provide the age of enrolment and duration:

- ☐ Pre-primary education is **not** compulsory.

- ☐ Pre-primary education is free of charge for all. Please provide the duration and indicate the extent to which it is free:

- ☒ Pre-primary education is **not** free.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

- ECEC fees are ruled subnational on the level of the German federal states. Most states offer some kind of free ECEC access (ranging from fee exemption for siblings or one fee free year before primary school to complete fee free ECEC).
- As part of the Act on Good Early Childhood Care and Education the Social Code Book VIII was amended on August 1st, 2019 in order to relieve certain families nationwide of the burden of cost contributions: Families who receive child supplement, housing benefit, unemployment benefit or other benefits according to Social Code Book II, benefits according to Social Code Book XII or the Asylum Seekers Benefits Act do not have to pay parental contributions. This also applies to the afternoon care of school children in after-school care centers ("Horte"). In short, no parental contributions have to be payed when families receive social benefits. In addition, an obligation to stagger parental fees has been implemented. Possible criteria are, for example, the number of children in the family or household income.

- What challenges were encountered in realizing early childhood care and education and pre-primary education?

- | | |
|---|--|
| ☐ Limited access | ☐ Poor learning outcomes |
| ☐ Issues of equity and inclusion | ☒ Low number of professionally trained educators |
| ☐ Poor quality programmes | ☐ Lack of support to families |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

2.2 Primary and secondary education

For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide “12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory.”

Primary education

- Please provide the age of enrolment and duration of primary education:

Children in Germany are legally required to attend a full-time school for nine years. General compulsory schools starts on 1 August for all children having reached their sixth birthday before a statutory qualifying date. Young people who do not attend a full-time general education school or vocational school at upper secondary level once they have completed their period of compulsory general schooling are obliged to attend a part-time vocational school (Berufsschulpflicht), which usually lasts three years.

For pupils who do not attend a general school at upper secondary level or who enter training, some Länder have regulations under which pupils are required to remain in full-time education and to attend some sort of vocational school. Disabled children and young people are also required to attend school and complete their compulsory education.

- Is primary education compulsory and free of charge?

- ☒ Primary education is compulsory
- ☐ Primary education is **not** compulsory.
- ☒ Primary education is free of charge.
- ☐ Primary education is **not** free.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

Primary school attendance in Germany is available to everyone free of charge. No distinction is made between boys and girls, or persons from different social backgrounds or origins. The legal basis for primary school (Grundschule) as the first compulsory school for all children is to be found in the school laws of the Länder and the school regulations (Schulordnungen) for primary school which are enacted by the Ministers of Education and Cultural Affairs of the Länder.

- What challenges were encountered in realizing primary education?

- | | |
|---|--|
| ☐ Limited access | ☐ Poor learning outcomes in: |
| ☐ Issues of equity and inclusion | Foundation literacy |
| ☐ High dropout rates | Numeracy |
| ☐ Poor quality programmes | Social and emotional learning |
| ☒ Other: | Others |
| | ☐ Disparity in learning outcomes |
| | ☐ Low number of professionally trained teachers |

Given that all-day education is not a traditional educational programme in Germany, access to it has been limited for primary school children.

- Please elaborate. Brief quantitative information may be added.

Currently Germany faces an additional need for all-day care places for primary school children. In 2021, the German Bundestag and the Bundesrat adopted the Act on Providing All-Day Care and Education for Primary School Children (Ganztagsförderungsgesetz/All-day Childcare Act). Within this law a legal entitlement to all-day care for children of primary school age will be gradually introduced from 1 August 2026. Nationwide 1.7 million children of primary school age take advantage of all-day care. This corresponds to a rate of 56 percent. According to national parent surveys 64 percent of families with primary school children need all-day care places.

Secondary education

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training.

- Please provide the age of enrolment and duration of lower secondary education:

After completing primary school, pupils move to lower secondary education. By then they are generally 10 years of age. Attendance of public-sector secondary schools is free of charge.

- Please provide the age of enrolment and duration of upper secondary education:

As soon as pupils have completed compulsory schooling, they move into upper secondary education which is generally at the age of 15. The type of school they enter depends on the qualifications and

entitlements obtained at the end of lower secondary education. The range of courses in upper secondary education in Germany includes both general and vocational education, as well as courses that combine general education and vocational training.

- Is lower and upper secondary education compulsory and free of charge?

- ☒ Lower secondary education is compulsory.
- ☐ Lower secondary education is **not** compulsory.
- ☒ Lower secondary education is free of charge.
- ☐ Lower secondary education is **not** free of charge.
- ☒ Upper secondary education is compulsory.
- ☐ Upper secondary education is **not** compulsory.
- ☒ Upper secondary education is free of charge
- ☐ Upper secondary education is **not** free of charge.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

- Please indicate whether the legal minimum age for employment is aligned with the end of compulsory education:

For reference: The employment laws and those related to compulsory education are interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.

Yes ☒ o No ☐

- Please provide reference to the relevant laws and provisions and indicate how the provision is enforced:

According to the Youth Work and Protection Act (Jugendarbeitsschutzgesetz) employment of children under the age of 15 is not allowed in Germany. This minimum age of 15 years corresponds with compulsory education of nine years of full-time schooling in most of the German Länder.

- What challenges were encountered in realizing secondary education?

- ☐ Limited access
- ☐ Issues of equity and inclusion
- ☐ High dropout rates
- ☐ Poor quality programmes
- ☐ Other:
- ☐ Poor learning outcomes
- ☐ Low readiness of primary graduates
- ☐ Low number of professionally trained teachers

- Please elaborate. Brief quantitative information may be added.

2.3 Higher education

For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3³⁹, and target 4.4⁴⁰. Article 4 of the Convention requires states to make “higher education equally accessible to all on the basis of individual capacity”. Article 13 of the International Covenant on Economic, Social and Cultural Rights (1966) further adds that this should be pursued by “every appropriate means, and in particular by the progressive introduction of free education”. Higher education includes technical and vocational education and training.

- Please indicate efforts made to ensure that higher education, including technical, vocation education and training, is equally accessible to all on the basis of individual capacity and/or is available free of charge (*several items may be ticked*):

- ☒ Higher education is free of charge
- ☒ Higher education is accessible on the basis of individual capacity (as assessed by reference to relevant qualifications and experience)
- ☒ Higher education is accessible through financial incentives and scholarships
- ☐ Higher education is accessible through positive or affirmative action measures
- ☒ Higher education is accessible through credit transfer system between states
- ☒ Higher education allows for multiple and flexible learning pathways (flexible entry and re-entry, recognition, validation, and accreditation of knowledge and skills acquired through non-formal and informal education).
- ☐ Other:

³⁹ Which calls on states to “ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university”.

⁴⁰ Which recommends to “substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship”.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, university supplies, transport, accommodation). Brief quantitative information may be added.

The Basic Law contains several fundamental provisions on questions of education. Among others it guarantees equality before the law (art. 3, para. 1), freedom of art and scholarship, research and teaching (art. 5, para. 3), free choice of profession and the place of training (art. 12, para 1). Art. 12 in connection with art. 3 para. 1 establishes a right to equal participation in the distribution of resources that the state provides and that are limited, like study places. In addition to federal legislation, like the Framework Act for Higher Education (Hochschulrahmengesetz, HRG), legislation on the Länder level (Landeshochschulgesetze, Landesgleichstellungsgesetze) is also in place in order to ensure equal access in admission of students, equal treatment and to reduce disadvantages.

Access to higher education is open to everyone who has the required qualifications. Nationals from other EU Member States enjoy the same status as Germans if they have the required language skills for the respective course of study. The basic condition for admission of foreign applicants is a prior education equivalent to the German certificate that entitles the bearer to enter an HEI, or a successfully passed examination for entering an HEI.

Hochschulrahmengesetz and Landeshochschulgesetze also include regulations on compensating students with disadvantages and disabilities. Examination regulations must consider the special concerns of students with disabilities in order to ensure equal opportunities. Furthermore, students with disabilities or who are chronically ill, can apply for further financial funding.

In general, local and international students are not charged tuition fees. Exceptions apply to students who significantly exceed the regular study period or for students at private HEIs. In general, for both German students and foreign students from the EU member states, state HEIs do not charge tuition fees. Exceptions apply to students who significantly exceed the regular study period or for students at private HEIs. For foreign students who are not from the EU, tuition fees may be imposed. The decision regarding tuition fees lies within the responsibility of the individual federal state. Since winter term 2017/2018 Baden-Württemberg has been charging tuition fees of 1,500 EUR per semester for those who come from outside the EU and the EEA for the purpose of studying.

To enhance equal opportunity, the Federal Government grants training assistance. Eligibility for student loans is usually dependent upon parental income. It is awarded half as a grant and half as an interest-free loan. The maximum monthly support for a student amounts to 452 euros plus 59 or 360 euros. This depends on whether the student lives with his parents or does not live with his parents. For students with children, there is extra support. Students in special social need are supported in some Länder by student services organisations (Studierendenwerke) or by the HEIs themselves with loans of various amounts. In addition, a number of smaller, mostly regional private foundations support students in need. Gifted students are eligible for grants from organisations for the promotion of young talent (Begabtenförderungswerke), which as a rule are associated with the churches, political parties, trade unions or businesses. The Federal Government supports the work of these organisations with considerable funding; the Länder participate in the funding of the German Academic Scholarship Foundation (Studienstiftung des deutschen Volkes), the largest of the organisations for the promotion of young talent.

For foreign students and young academics, the German Academic Exchange Service (Deutscher Akademischer Austauschdienst/DAAD) offers grants for a limited study or

advanced training visit at a German HEI. In addition, some Länder have special funds to support foreign students at the respective HEIs.

Upon conclusion of a course leading to a first degree, grants can be awarded for postgraduate studies based on the postgraduate support laws and ordinances of the Länder. The organisations for the promotion of young talent also provide corresponding grants.

The 57 student services organisations across Germany play a key role in indirect financing by providing reduced-price catering in refectories and cafeterias at all HEIs, as well as low-cost accommodation. In addition, childcare, psychological and social counselling, as well as social and first semester counselling are provided by HEIs, local authorities, student services organisations and student unions. Students can also avail themselves of cost-reduced tickets for local public transport.

- What challenges were encountered in realizing higher education?

- ☐ Limited access
- ☐ Issues of equity and inclusion
- ☐ Poor quality programmes
- ☐ Poor learning outcomes
- ☐ Low number of professionally trained professors
- ☐ Insufficient mechanisms to ensure smooth transition from secondary to tertiary
- ☒ Other:

Covid19-Pandemic

- Please elaborate. Brief quantitative information may be added.

With great effort and support from the Länder, HEIs have pushed the use and expansion of digital tools to maintain teaching operations during the Covid-19 pandemic in 2020/21/22. The resulting flexibilization can benefit non-traditional students (e.g. those with professional qualifications or students with family responsibilities) as well as foreign students. The digitalization of teaching can help to promote the opening of HEIs to target groups whose individual life situation makes it difficult to take up or continue a course of study that follows the framework conditions of exclusively face-to-face HEIs.

2.4 Adult education and alternative learning

For reference: Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”

- Please indicate the measures taken to establish a system of continuing education and equitable access to learning and training opportunities (*several items may be ticked*):

- ☒ Provision of education for persons who have not received or completed the whole period of their primary education
- ☒ Provision of literacy programmes
- ☒ Provision of continuous learning (such as learning programmes to develop knowledge, skills, abilities, or competencies for personal and professional development)
- ☒ Provision of free of charge learning opportunities
- ☒ Provision of professional training including reskilling and upskilling programmes
- ☒ Recognition, validation and certification of non-formal and informal learning
- ☐ Provision of free of charge career guidance and counselling
- ☒ Lifelong learning entitlements including learning accounts, vouchers, etc.
- ☐ Other:

- Please elaborate further on the measures taken:

Please refer to the 9th German Report for a detailed description of the responsibilities for adult education in Germany. Following the adoption of the National Skills Strategy (Nationale Weiterbildungsstrategie) by the Federal Government, the Länder, the social partners and the Federal Employment Agency in June 2019, the partners decided in September 2022 to continue and further develop the strategy. This involves the discussion of new ideas with representatives from practice and academia and of concrete measures to strengthen the culture of continuing education. The first National Skills Conference took place in November 2023, the second is planned for the first half of 2025.

- What challenges were encountered in realizing adult learning and education?

- | | |
|---|---|
| ☐ Limited access | ☐ Limited funding |
| ☐ Issues of equity and inclusion | ☐ Poor learning outcomes |
| ☐ Poor quality programmes | ☐ Low number of professionally trained educators |
| ☒ Other: | |

Reaching the target group is sometimes difficult, e. g. illiteracy

- Please elaborate. Brief quantitative information may be added.

3. Quality education provision and learning environment

For reference: Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to “build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all”.

3.1 General measures

- Please indicate whether the legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of public education institutions regarding:

- ☒ State monitoring and inspections
- ☒ Health and sanitation
- ☒ Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))
- ☒ Infrastructure
- ☒ Curriculum
- ☒ Student-teacher ratio
- ☐ School fees (if relevant)
- ☐ Other

- Please elaborate on each of the measures taken:

You may include information on policies, protocols or codes of conduct.

Educational standards for several subjects at both primary, secondary and upper secondary level were adopted by the Länder in 2020, 2022, 2023 and 2024.

All standards are based on areas of competence within the individual subject. They:

- take up the basic principles of the respective subject;
- define subject-specific competences, including basic levels of knowledge that pupils should have achieved by a certain stage of their school career;
- are aimed at systematic and network-based learning, and thus follow the principle of cumulative acquisition of competence;
- describe expected levels of performance as part of requirement profiles;
- are related to the core area of the respective subject and provide leeway for pedagogical measures taken by the schools;
- relate to a medium level of requirements;
- are illustrated by sample test questions.

Since 2009, the Länder have been examining the attainment of the educational standards by pupils at primary school and lower secondary level in a comparison between the Länder, based on assessment by the Institute for Educational Quality Improvement (Institut zur Qualitätsentwicklung im Bildungswesen/IQB). The IQB comparison between the Länder reviews

centrally the extent to which the educational standards of the Standing Conference of the Ministers of Education and Cultural Affairs in the Länder had been achieved.

The 2021 IQB assessed for the third time the extent to which the educational standards of the Standing Conference for the primary sector in the subjects German and maths had been achieved. The results were published in 2022 and show a high but slowly decreasing performance level by fourth graders.

The 2022 IQB assessed the achievement of the educational standards of the Standing Conference in the subjects German, English and French at lower secondary level for the third time. The results were published in 2023. They show that the level of performance of pupils in German has declined while the level has increased in English. As French was included in six of the sixteen Länder it was not possible to make any cross-national statements about the results.

- What challenges were encountered in realizing quality education?

- | | |
|---|---|
| ☐ Non-supportive or inadequate learning environments | ☐ Low quality educational infrastructure and materials |
| ☐ Violence in schools | ☐ Inadequate parental support to education |
| ☐ Cost of education | ☐ Long distances to schools |
| ☐ Conflicts or crises | |
| ☒ Other: | |

Coronavirus pandemic

- Please elaborate. Brief quantitative information may be added.

3.2 Education personnel

For reference: Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to “substantially increase the supply of qualified teachers”.

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels and regarding the training for the teaching profession (several items may be ticked):

- ☒ Teacher training is provided without discrimination.
- ☒ Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels).
- ☒ Initial training and continuous professional development are provided.
- ☒ Minimum standards and qualifications required for the teaching profession.
- ☒ Measures taken to strengthen the social status and attractiveness of the teaching profession.

- ☒ Measures taken to promote diversity in the teaching workforce, including to redress gender imbalances at different levels of education.
- ☒ Establishment of performance monitoring systems.
- ☒ Measures taken to increase women in leadership positions in education.
- ☐ Other:

- Please elaborate on each of the measures taken:

Teachers are employed by the Länder either as public civil servants or as salaried employees. In Germany, there are six types of teaching careers:

1. Teachers at primary schools;
2. Teachers who cover both primary schools and all or individual types of schools at lower secondary level;
3. Teachers for all or individual types of schools at lower secondary level;
4. Teachers at upper secondary level (general education subjects) or at Gymnasium;
5. Teachers at upper secondary level (vocational subjects) or vocational schools;
6. Teachers at special schools.

Remuneration for all these teaching careers is in line with the corresponding grades in the upper and highest grades of the civil service. There is no discrimination during teacher training or during teachers' professional careers.

Please see 10th German Report regarding measures taken to reform teacher training. In order to address the increasing shortage of teachers in Germany, the Länder have adopted "Measures to recruit additional teachers and to structurally supplement teacher training" in March 2024. These measures include a more flexible training of teachers in order to tap into new target groups and a common framework for the qualification of teachers with only one subject, for a dual training system and a Master's programme for career changers.

- What challenges were encountered in the education personnel?

- | | |
|--|---|
| ☒ Shortages of teaching staff | ☐ Low quality educational infrastructure and materials |
| ☐ Lack of qualified, trained and motivated teaching staff | ☐ High student – teacher ratio |
| ☐ Lack of training centres | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

3.3 Respect for human rights and fundamental freedoms

For reference: Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.⁴¹ Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the future consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms // 2023 Recommendation on [...] will be used specifically for monitoring SDG4 indicator 4.7.1.

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items may be ticked):

☒ Curriculum includes human rights education.

☒ Educational and/or extracurricular activities are organized on human rights education.

☐ Other:

- Please elaborate on each of the measures taken:

Please refer to the 9th and 10th German report for detailed information about HRE in Germany.

3.4 Non-state actors in education

For reference: Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for non-state education provision⁴².

- Please indicate the measures taken to ensure the provision of quality non-state education (several items may be ticked):

☒ Legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation⁴³ explicitly apply to non-state educational institutions. Please specify:

The right to establish private schools is stipulated in the Basic Law (Grundgesetz, Art. 7, para. 4) and corresponding provisions of the Länder constitutions. The most important legal provisions for establishing private schools are the school laws, private school laws as well as financial aid regulations in the form of laws and ordinances of the federal states. According to the Basic Law, private schools are also subject to public school supervision.

Please refer to the 9th and 10th German reports for additional information on private schooling in Germany.

⁴¹ Which calls on states to “ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture’s contribution to sustainable development”.

⁴² Private, faith-based, NGOs, community actors.

⁴³ See: Article/Paragraph 1(1).

☐ Policies aim to guarantee that the development of non-state education does not generate discrimination and that non-state actors offer a relevant alternative (without supplanting public education). [Please specify:](#)

☒ Legal provisions provide for the rights of the parents /legal guardians for providing religious and moral education for their children. [Please specify:](#)

Please refer to the 9th German report for information on religious and moral education in Germany.

☐ Legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of non-state educational institutions. [Please specify what is covered:](#)

- ☐ Registration
- ☐ State monitoring and inspections
- ☐ Qualifications of teachers
- ☐ Health and sanitation
- ☐ Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))
- ☐ Infrastructure
- ☐ Curriculum
- ☐ Student-teacher ratio
- ☐ School fees
- ☐ School closures
- ☐ Other

[- Please elaborate:](#)

[- What challenges were encountered in non-state education provision?](#)

- | | |
|---|---|
| ☐ Low quality educational infrastructure and materials | ☐ Issues in terms of equity and inclusion |
| ☐ Low number of professionally trained teachers | ☐ Weak government regulatory and monitoring capacity |
| ☐ High student – teacher ratio | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

3.5 Digital education

Digital education is both an opportunity for enhancing access but also can lead to challenges in terms of quality education and inclusion⁴⁴.

- Please indicate the measures taken to ensure the provision of quality digital education (several items may be ticked):

☐ Digital technology use in education is provided for in the legal framework.

Please indicate the relevant text and provisions:

☒ Core legislations, policies, strategies or plans for the management, privacy, security, storage, transfer, use, and sharing of education data internally and externally to ensure the right to privacy of learners and education stakeholders (e.g., informed consent, transparent usage policies, etc.)

☐ Regulatory framework establishes minimum education standards for digital education to which all actors in education must comply.

☒ Measures to remove barriers to accessing digital content⁴⁵, including ensuring access to curriculum-aligned digital content available on free, public, multi-modal national platforms; high-quality content is available in core subjects, official national language(s), and designed with inclusive features to assist learners with disabilities.

☒ Digital skills incorporated into pre- and in-service teacher and leadership training curricula to create a culture of digital innovation and growth anchored in equity and inclusion that enables ongoing professional development for existing and emerging staff.

☒ Future-ready skills (including digital skills, data and AI competencies, critical thinking, etc.) integrated into formal curriculum at all levels of education

☒ Measures address the digital divide, including ensuring access to reliable electricity, meaningful internet connectivity at school and at home, devices suitable for learning and teaching, safe and sustainable software and secure platforms, and integrated education data systems.

☐ A well-established, sustainable, and cost-effective budget secured from a range of funding sources and intersectoral cooperation, supported by impact focused reporting linked to regional strategic goals.

⁴⁴ Please see General Comment No. 25 (2021) of the Committee on the Rights of the Child which covers children's right to education in relation to the digital environment.

⁴⁵ Lack of internet connection, basic infrastructure or devices.

- Please elaborate on each of the measures taken:

The Federal Government and the Länder work closely together to manage digital transformation in education. In addition to the 2016 Strategy for Education in the Digital World which formulates clear goals for digital education in schools, vocational education and training (TVET), higher education institutions as well as adult and lifelong learning, the Länder adopted a Recommendation on Teaching and Learning in the Digital World in December 2021. The Recommendation includes measures needed for digital transformation in teaching and learning. It also addresses challenges such as, among others, IT infrastructure.

In order to improve the digital infrastructure in schools, the Federal Government and the Länder agreed on the Digital Pact for Schools (DigitalPakt Schule) in 2019. The pact is based on the Federal Government's Educational Campaign for the Digital Knowledge Society Strategy and the above-mentioned strategy of the Länder. In a response to the COVID-19 pandemic the Federal Government and the Länder decided in 2020 to expand the Digital Pact in order to equip students and teachers with borrowed mobile devices and for setting up the necessary administration and support structures. These measures brought the total funding up to over 7 billion euros.

As part of the Digital Pact the Länder aim at providing educational media content on learning platforms that can be accessed by teachers and learners alike by working closely together to design and implement cross-national projects.

With the aim of enabling students to acquire digital competencies or the corresponding skills, abilities and knowledge that enable them to live an independent and responsible life in a digital world, the following competence areas were anchored in the KMK strategy:

- o Search, process and store.
- o Communicate and cooperate.
- o Producing and presenting.
- o Protect and act safely.
- o Problem solving and action.
- o Analyze and reflect.

It is the responsibility of the federal states to implement the present competency framework in concepts for media education and in the framework curricula.

The Standing Conference of the Ministers of Education and Cultural Affairs in the Länder has established a working group that is currently addressing questions relating to the use of generative AI in school education. The working group hosted a conference on "AI in school education processes" in November/December 2023 which focused on the question on how AI can be used in a didactically meaningful and learning-promoting way in schools. In addition to the discussions of the working group, the Standing Scientific Commission of the Standing Conference of the Ministers of Education and Cultural Affairs publish a paper on "Large Language Models and their Potential in the Education System" in January 2024 which includes science-based key recommendations on how to deal with Large Language Models in school education. The recommendations are currently being assessed by the Standing Conference of the Ministers of Education and Cultural Affairs.

- What challenges were encountered in digital education provision (check all that apply)?

- | | |
|--|---|
| ☐ Lack of quality, curriculum-aligned digital teaching and learning content that supports flexible learning and teaching pathways | ☐ Limited access to internet and/or electricity |
| ☐ Lack of equity and inclusion in digital learning solutions | ☐ Limited access to hardware (devices, chargers, etc.) |
| ☐ Inadequate safety measures and IT support to respond to issues of child online safety or reduce cyber security risks | ☐ Difficulty in regulating the use of digital education solutions |
| ☐ Other: | ☐ Difficulty in sustainably financing digital education solutions at national scale |
| | ☐ Lack of digital skills development for meaningful use of digital technology in teaching practice |
| | ☐ Disjointed or fragmented solutions that are not centrally systematized or regulated |

- Please elaborate. Brief quantitative information may be added.

4 Strengthening governance systems

For reference: The Education 2030 Framework for Action states "to ensure quality education and conditions for effective education outcomes, governments should strengthen education systems by instituting and improving appropriate, effective and inclusive governance and accountability mechanisms; quality assurance; management information systems; transparent and effective financing procedures and mechanisms; and institutional management arrangements, as well as ensure that robust, timely and accessible data are available" (para. 18).

- Please indicate the measures taken in terms of governance (several items may be ticked):

- ☐ Monitoring mechanisms to assess compliance with the right to education obligations, including through management information systems.
- ☒ Monitoring results are made public. Please provide the link:

<https://www.iqb.hu-berlin.de/bt>

- ☒ Monitoring processes are participatory, inclusive and regular.

- ☐ Sector-wide and multisector approach is adopted to education governance.
- ☐ Financial resources are effectively allocated to prioritise the provision of free, quality, public education and are adequately budgeted for in government plans.
- ☒ The decision-making process for the allocation of resources to education is transparent.
- ☐ Ensuring crisis-sensitive and disaster risk-informed planning and programming, including the provision of quality education in emergencies.
- ☒ There is a certain degree of decentralization in favour of local public authorities and autonomy for schools to ensure context relevance of their teaching.

- Please elaborate on each of the measures taken:

- What challenges were encountered in terms of governance?

- | | |
|--|---|
| <ul style="list-style-type: none"> ☒ Budgetary constraints ☐ Lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels ☐ Poor dialogue with teachers' trade unions ☐ Other: | <ul style="list-style-type: none"> ☐ Absence of supportive/ inconsistent/obsolete legal and policy environment ☐ Lack or weakness of monitoring systems – including the lack of reliable data |
|--|---|

- Please elaborate. Brief quantitative information may be added.

III. Methods used to draw the attention of the various authorities in the country to the instruments

For reference: UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (Several items may be ticked)

- ☐ Translation of the Convention/Recommendation into the national and possibly local languages

- ☒ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education including through appropriate materials and resources
- ☒ Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments
- ☒ Other:

The bodies of the Standing Conference of the Ministers of Education and Cultural Affairs, among them the School Community, the VET Committee and the Higher Education Committee, continue to regularly address issues related to non-discrimination. Their decisions are not legally binding but are commonly transferred into the policies and laws of the Länder.